Occupational Safety and Health Regulation

(Cap. 509, section 42)

(Enacting provision omitted—E.R. 6 of 2024)

[1 January 1998] *L.N. 618 of 1997*
(Format changes—E.R. 6 of 2024)

Part I

Preliminary

1. *(Omitted as spent—E.R. 6 of 2024)*

2. Interpretation

In this Regulation, unless the context otherwise requires—

dangerous part (危險部分), in relation to any plant, means a part specified in Schedule 1;

fire safety measure (消防安全措施) means any installation or equipment manufactured, used or designed to be used for the purposes of—

(a) extinguishing, preventing or limiting a fire or the effects of a fire; or

(b) giving warning of a fire; or

(c) providing access to any premises or place for the purposes of extinguishing, preventing or limiting a fire or the effects of a fire;

maintain (保養、維持) includes repair;

young person (青年) has the same meaning as in the Employment Ordinance (Cap. 57).

Part II

Accident Prevention

3. Responsible person to ensure safe design and maintenance of plant

(1) The person responsible for a workplace must, as far as practicable, ensure that plant is not installed or kept in the workplace unless the plant is safe and without risks to the safety and health of persons who use or may use the plant.

(2) If plant is installed or kept in a workplace, the person responsible for the workplace must ensure that the plant is maintained so that the plant is safe and without risks to the safety and health of persons who use or may use the plant.

(3) A person responsible for a workplace who fails to comply with subsection (1) or (2) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 86)*

4. Responsible person to ensure dangerous parts of plant are guarded

(1) The person responsible for a workplace must, as far as practicable, ensure—

(a) that the dangerous parts of plant installed or kept in the workplace are effectively guarded; and

(b) in particular that, when any dangerous part of the plant is in motion, the guard relating to that part is kept in place.

(2) Subsection (1)(b) does not apply when—

(a) it is necessary to expose the dangerous part of the plant for examination, or for carrying out immediately an adjustment or lubrication indicated to be required upon such an examination; and

(b) the examination, adjustment or lubrication can be undertaken only when the dangerous part of the plant is in motion.

(3) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 87)*

5. Responsible person to ensure young persons do not clean plant

(1) If a young person is employed at a workplace where plant is installed or kept, the person responsible for the workplace must ensure that the young person does not clean the plant when a dangerous part of the plant is in motion.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 88)*

6. Responsible person to ensure that certain parts of workplace are securely fenced

(1) If a platform, pit or opening located within a workplace could be a danger to the safety of persons, the person responsible for the workplace must ensure that the platform, pit or opening—

(a) is securely fenced to a height of 900 mm (measured from the upper surface of the platform, or of the edge of the pit or opening); or

(b) where it is not so fenced, is sufficiently well protected to the satisfaction of the Commissioner.

(2) If a vessel containing a scalding, corrosive or poisonous substance is located within a workplace, the person responsible for the workplace must ensure that the vessel—

(a) is securely fenced to a height of 900 mm (measured from the highest point at the top of the vessel); or

(b) where it is not so fenced, is sufficiently well protected to the satisfaction of the Commissioner.

(3) A person responsible for a workplace who fails, without reasonable excuse, to comply with subsection (1) or (2) commits an offence and is liable on conviction to a fine of $400,000. *(5 of 2023 s. 89)*

(4) If a person responsible for a workplace is found guilty of having committed an offence under subsection (3) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 12 months.

Part III

Fire Precautions

7. Responsibilities of responsible person with respect to means of egress from workplace

(1) The person responsible for a workplace must ensure that, while the workplace is in use, all doors that provide egress from the workplace are kept unlocked or are otherwise fastened in such a manner that they can easily be opened from inside the workplace.

(2) The person responsible for a workplace located in a building (being a building with a plan or plans approved by the Building Authority under Part 2 of the Buildings Ordinance (Cap. 123)) must ensure that an illuminated exit sign bearing the word "EXIT" and the characters "出口" is installed, in accordance with a Code of Practice published from time to time by the Director of Fire Services, at each exit from the workplace. *(E.R. 1 of 2012)*

(3) A person responsible for a workplace who fails, without reasonable excuse, to comply with subsection (1) or (2) commits an offence and is liable on conviction to a fine of $400,000. *(5 of 2023 s. 90)*

(4) If a person responsible for a workplace is found guilty of having committed an offence under subsection (3) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 6 months.

(5) For the purposes of subsection (2), exit from a workplace is the exit shown on the approved plan or plans of the building in which the workplace is located as referred to in that subsection.

8. Responsible person to ensure that means of escape are properly maintained

(1) The person responsible for a workplace must ensure that all means of escape from the workplace are maintained in a safe condition and kept free from obstruction.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine of $400,000. *(5 of 2023 s. 91)*

(3) If a person responsible for a workplace is found guilty of having committed an offence under subsection (2) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 6 months.

9. Offences relating to means of escape from workplace

(1) Any person who—

(a) damages or obstructs a means of escape from a workplace; or

(b) does anything that prevents such a means of escape from being used to enable persons to escape from the workplace in the case of fire or other emergency; or

(c) without lawful authority, alters such a means of escape,

commits an offence and is liable on conviction to a fine of $150,000. *(5 of 2023 s. 92)*

(2) If a person is found guilty of having committed an offence under subsection (1) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 6 months.

10. Commissioner may require additional fire safety measures

(1) The Commissioner may, by notice in writing served on a person responsible for a workplace, require the person to provide in respect of the workplace, within such period as is specified in the notice, fire safety measures additional to those required by or under any other law.

(2) A person responsible for a workplace who, without reasonable excuse, fails to comply with a requirement imposed under subsection (1) commits an offence and is liable on conviction to a fine of $400,000. *(5 of 2023 s. 93)*

(3) If a person responsible for a workplace is found guilty of having committed an offence under subsection (2) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 6 months.

11. Offence to damage or interfere with fire safety measures provided at workplace

(1) Any person who—

(a) damages or interferes with the fire safety measures provided at premises where a workplace is located; or

(b) does anything to prevent those measures from being used as such,

commits an offence and is liable on conviction to a fine of $150,000. *(5 of 2023 s. 94)*

(2) If a person is found guilty of having committed an offence under subsection (1) and it is proved that the person committed the offence intentionally, knowingly or recklessly, the court may, in addition to or instead of imposing the penalty prescribed by that subsection, sentence the person to imprisonment for a term not exceeding 6 months.

Part IV

Workplace Environments

12. Responsible person to keep workplace clean and adequately ventilated

(1) Subject to subsection (2), the person responsible for a workplace must, as far as reasonably practicable, ensure that the workplace and all plant installed or kept in the workplace are kept free of dirt, waste materials and debris.

(2) The person responsible for a workplace must ensure that all waste materials and debris at the workplace are kept in suitable containers.

(3) The person responsible for a workplace must ensure—

(a) that the workplace is adequately ventilated by fresh air; and

(b) that, as far as reasonably practicable, the air within the workplace is kept free of impurities.

(4) If it is not practicable to comply with subsection (3)(b) as regards a workplace, the person responsible for the workplace —

(a) must take all reasonably practicable steps to protect employees employed at the workplace from inhaling impurities and to prevent accumulation of the impurities at the workplace; and

(b) in particular, must, if it is practicable having regard to the activity being undertaken at the workplace, ensure that effective exhaust devices are installed and used as closely as possible to the source of the impurities.

(5) A responsible person for a workplace who fails to comply with subsection (1), (2), (3) or (4) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 95)*

(6) In this section, ***impurities*** (雜質) includes (but is not limited to) fumes, dust and disease-causing bacteria.

13. Responsible person to ensure that workplace is sufficiently lit

(1) The person responsible for a workplace must ensure that the workplace is sufficiently well lit, by natural or artificial lighting, to ensure the safety and health of employees and other persons who are at work at the workplace.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 5.

(3) It is a defence in proceedings for an offence under subsection (2) to show that the lighting at the workplace has been provided in compliance with the guidelines issued by the Commissioner with respect to the provision of lighting at workplaces.

14. Responsible person to ensure that floors of workplace are adequately drained

(1) The person responsible for a workplace must ensure that an effective means for draining the workplace is installed and maintained at the workplace if—

(a) an activity carried out at the workplace makes, or is likely to make, the floor of the workplace wet; and

(b) the wetness can be avoided or eradicated by means of a drainage system.

(2) A responsible person for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 96)*

Part V

Hygiene at Workplaces

15. Workplace to be provided with sanitary conveniences, etc.

(1) The person responsible for a workplace must ensure that the workplace is provided with sufficient and suitable latrine and washing conveniences and, where persons of both sexes are or are intended to be employed, such conveniences shall afford proper separate accommodation for persons of each sex.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 4. *(5 of 2023 s. 97)*

(3) Any latrine or washing convenience which does not comply with the provisions of the Buildings Ordinance (Cap. 123) shall be deemed not to be sufficient and suitable for the purposes of this section.

16. Employees to be provided with adequate supplies of drinking water

(1) The person responsible for a workplace must ensure that sufficient potable water is provided at the workplace for the consumption by employees who are employed there.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits and offence and is liable on conviction to a fine at level 5. *(5 of 2023 s. 98)*

Part VI

First Aid at Workplaces

17. Definitions (Part VI)

(1) In this Part—

British Pharmaceutical Codex (《英國副藥典》) includes the supplements to it;

first aid facility (急救設施) means a first aid box or first aid cupboard containing first aid items;

first aid item (急救物品) means an item of the kind specified in Schedule 2 or an item required under section 19.

(2) In this Part—

(a) the number of employees employed at a workplace shall be taken to be the number of persons actually working therein at any time;

(b) a person trained in first aid shall be a person—

(i) who holds a certificate of competency in first aid issued by the St. John's Ambulance Association, the Auxiliary Medical Services or the Hong Kong Red Cross; or

(ii) who is a registered nurse within the meaning of the Nurses Registration Ordinance (Cap. 164); or

(iii) who has completed a training course in first aid and who holds a certificate to that effect issued by an organization approved by the Commissioner.

18. First aid facilities to be provided at workplace

(1) The person responsible for a workplace must ensure—

(a) that a separate first aid facility is provided and maintained for each 100 employees, or part of that number, employed at the workplace; and

(b) that the first aid facility is clearly marked "FIRST AID" and "急救"; and

(c) that the first aid facility contains the items specified in Schedule 2 and any items required under section 19; and

(d) that all first aid items are maintained in a serviceable condition and are of a grade or quality not lower than that specified in the British Pharmaceutical Codex or, if the Commissioner approves any other internationally recognized standard for the purposes of this paragraph, that standard.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 4. *(5 of 2023 s. 99)*

19. Commissioner may require additional first aid items to be provided

(1) The Commissioner may, by notice in writing served on the person responsible for a workplace, require that person to include, in addition to the items specified in Schedule 2, all or any of the following items in the first aid facility, within such period as is specified in the notice, required to be provided and maintained for the employees employed at the workplace—

(a) a specified quantity of waterproof adhesive dressings for application to wounds;

(b) a specified quantity of rolls of waterproof adhesive plaster;

(c) a specified quantity of eye baths for the treatment of eye injuries.

(2) A person responsible for a workplace who is served with a notice in accordance with subsection (1) must provide the required items within the period specified in the notice.

(3) A person responsible for a workplace who fails to comply with subsection (2) commits an offence and is liable on conviction to a fine at level 4. *(5 of 2023 s. 100)*

20. Responsible person to designate employees to be in charge of first aid facilities

(1) The person responsible for a workplace must—

(a) designate a team of 2 or more of the employees employed at the workplace to be responsible for each first aid facility provided and maintained under section 18; and

(b) ensure that at least one member of each team responsible for a first aid facility is available at the workplace when work is being performed there; and

(c) arrange for a notice specifying the names of the members of the team responsible for a first aid facility to be affixed to that facility; and

(d) ensure that, for each 150 employees employed at the workplace, at least one of those employees is a person trained in first aid.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 4 in respect of contravention of subsection (1)(a), (b) or (c) or to a fine at level 6 in respect of contravention of subsection (1)(d). *(5 of 2023 s. 101)*

21. Commissioner may exempt responsible person from requirements of this Part in certain circumstances

(1) The Commissioner may, by notice in writing served on the person responsible for a workplace, exempt that person from being required to comply with all or any of the requirements imposed by or under this Part if the Commissioner is satisfied that—

(a) at the workplace there is a room set aside solely for providing first aid treatment to employees employed at the workplace who have sustained injury or become ill while at work; and

(b) the room is sufficiently well lit and equipped, and is sufficiently hygienic, to ensure that treatment can be provided safely and without increasing the risks to the safety and health of employees who receive treatment there.

(2) The person responsible for a workplace who is exempted under subsection (1) must ensure that the exemption notice is displayed in a conspicuous place in the first aid treatment room concerned.

(3) The Commissioner may, by notice in writing served on the person responsible for a workplace, revoke an exemption given under subsection (1) if the Commissioner is satisfied that—

(a) there is no longer such a room set aside at the workplace as referred to in paragraph (a) of that subsection; or

(b) there is such a room set aside at the workplace but it does not comply with paragraph (b) of that subsection.

(4) Before revoking such an exemption, the Commissioner must give the person responsible for the workplace concerned an opportunity to be heard.

Part VII

Manual Handling Operations

22. Definitions (Part VII)

In this Part—

further assessment (進一步評估) means an assessment made in accordance with section 25(1), and includes such an assessment as varied after review in accordance with section 25(3);

injury (傷害) does not include an injury attributable to a toxic or corrosive substance that—

(a) has leaked or spilled from a load; or

(b) is present on the surface of a load without having leaked or spilled from the load; or

(c) forms part of a load;

load (負荷物) includes a load that comprises or includes any living being;

manual handling operation (體力處理操作), in relation to a load, means moving or supporting the load (including lifting, lowering, pushing, pulling and carrying the load) by a person's hands or arms or by some other form of bodily effort;

preliminary assessment (初步評估) means an assessment made in accordance with section 23(1) or (2), and includes such an assessment as varied after review in accordance with section 23(4);

preventive and protective measures (預防性和保護性措施), in relation to a workplace, means measures that the person responsible for the workplace has, as a result of a preliminary assessment or further assessment or a review of such an assessment, identified as measures that have to be taken in order to comply with the requirements imposed by or under this Part;

safety and health risks (關乎安全及健康的危險), in relation to manual handling operations undertaken at a workplace, means risks to the safety and health of employees employed at the workplace who undertake those manual handling operations which have been identified as a result of a preliminary assessment or further assessment, as the case may be.

23. Responsible person to make preliminary assessment of risks

(1) Before manual handling operations are first undertaken at a workplace after the commencement* of this Part, the person responsible for the workplace must ensure that a preliminary assessment is made of the risks to the safety and health of employees employed at the workplace who undertake those manual handling operations.

(2) If manual handling operations were being undertaken at a workplace immediately before the commencement of this Part and those manual handling operations are also undertaken on or after that commencement, the person responsible for the workplace must, within 14 days after that commencement, ensure that a preliminary assessment is made of the risks to the safety and health of employees employed at the workplace who undertake those manual handling operations.

(3) The person responsible for a workplace must conduct a review of a preliminary assessment made in accordance with this section whenever—

(a) that person has reason to believe that the assessment is no longer valid; or

(b) the circumstances in which the assessment was made have significantly changed.

(4) As soon as practicable after reviewing a preliminary assessment in accordance with subsection (3), the person responsible for the workplace must vary the assessment by making such modifications to it as are indicated to be required upon the review.

(5) A person responsible for a workplace who fails to comply with subsection (1), (2), (3) or (4) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 102)*

Editorial Note:

* Commencement date: 1 July 1998.

24. Responsible person to avoid need to undertake certain manual handling operations

(1) The person responsible for a workplace must, as far as reasonably practicable, avoid the need for employees employed at the workplace to undertake any manual handling operations which may create safety and health risks.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 103)*

25. Responsible person to make further assessment of risks

(1) If it is not reasonably practicable for the person responsible for a workplace to avoid the need for employees employed at the workplace to undertake any manual handling operations which may create safety and health risks, that person must, before those manual handling operations are undertaken at the workplace, ensure that a further assessment is made of the risks to the safety and health of those employees having regard to the matters specified in column 1 of Schedule 3 and the questions relating to those matters specified in column 2 of that Schedule.

(2) The person responsible for a workplace must conduct a review of a further assessment made in accordance with this section whenever—

(a) that person has reason to believe that the assessment is no longer valid; or

(b) the circumstances in which the assessment was made have significantly changed.

(3) As soon as practicable after reviewing a further assessment in accordance with subsection (2), the person responsible for the workplace must vary the assessment by making such modifications to it as are indicated to be required upon the review.

(4) A person responsible for a workplace who fails to comply with subsection (1), (2) or (3) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 104)*

26. Responsible person to keep record of assessment of manual handling operations

(1) If 10 or more employees are normally employed at a workplace at any one time to undertake manual handling operations which may create safety and health risks, the person responsible for the workplace must, as soon as practicable after making a preliminary assessment or further assessment, or conducting a review of such an assessment, in accordance with this Part, record—

(a) all significant findings resulting from the assessment or review; and

(b) the particulars of any group of the employer's employees whose safety or health when they are at work is identified as being at risk.

(2) The person responsible for a workplace must ensure that every record made in accordance with subsection (1)—

(a) is kept in a safe place at that person's principal place of business in Hong Kong for a period of not less than 3 years; and

(b) is available for inspection by any occupational safety officer who calls at that place during ordinary business hours.

(3) A person responsible for a workplace who fails to comply with subsection (1) or (2) commits an offence and is liable on conviction to a fine at level 4. *(5 of 2023 s. 105)*

27. Responsible person to reduce risks and make arrangements for preventive and protective measures

(1) The person responsible for a workplace must, before any manual handling operations which may create safety and health risks are undertaken by employees employed at the workplace, ensure that—

(a) appropriate steps are taken to reduce risks to the safety and health of the employees employed at the workplace who undertake those manual handling operations to the lowest level that is reasonably practicable; and

(b) the employees referred to in paragraph (a) are provided with relevant information as to the weight of each load and the heaviest side of each load whose centre of gravity is not centrally positioned; and

(c) the employees referred to in paragraph (a) are provided with such mechanical aids and protective equipment as will secure their safety and health while undertaking those manual handling operations; and

(d) when any of those manual handling operations involves the lifting of a load, the manual handling operation is, if reasonably practicable to do so, undertaken by a team of employees.

(2) The person responsible for a workplace must, having regard to the nature of the activities carried out at and the size of the workplace, make arrangements for preventive and protective measures, including but not limited to those measures referred to in subsection (1), to be taken with respect to the manual handling operations which may create safety and health risks undertaken at the workplace and for the effective planning, organization, control, monitoring and review of those preventive and protective measures.

(3) A person responsible for a workplace who fails to comply with subsection (1) or (2) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 106)*

28. Responsible person to appoint assistants

(1) If 10 or more employees are normally employed at a workplace at any one time to undertake manual handling operations which may create safety and health risks, the person responsible for the workplace must appoint such number of competent persons as may be necessary to assist in carrying out the preventive and protective measures with respect to those manual handling operations and, in determining the necessary number of competent persons to be appointed, the person responsible for the workplace must have regard to—

(a) the number of employees employed at the workplace to undertake those manual handling operations; and

(b) the size of the workplace; and

(c) the risks to which those employees are exposed at the workplace; and

(d) the distribution of those risks within the workplace.

(2) If more than one competent person is appointed under subsection (1), the person responsible for the workplace must ensure that adequate arrangements are made for securing co-operation among those competent persons as to the carrying out of the preventive and protective measures referred to in that subsection.

(3) The person responsible for the workplace must ensure that—

(a) the time allowed for the competent persons appointed under subsection (1) to perform their functions; and

(b) the resources necessary to perform those functions,

are adequate, having regard to the number of employees employed at the workplace to undertake manual handling operations which may create safety and health risks, the size of the workplace, the risks to which those employees are exposed at the workplace, and the distribution of those risks within the workplace.

(4) A person is a competent person for the purposes of this section only if that person has undergone the training, and has the experience and other characteristics, necessary to ensure that he has the capacity to assist the person responsible for the workplace in complying with the requirements imposed by or under this Part on persons responsible for workplaces.

(5) A person responsible for a workplace who fails to comply with subsection (1), (2) or (3) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 107)*

29. Responsible person to provide certain information to employees

(1) The person responsible for a workplace must ensure that employees employed at the workplace who undertake manual handling operations which may create safety and health risks are provided with, in addition to the information required under section 27(1)(b), relevant comprehensible information as to—

(a) the safety and health risks; and

(b) the preventive and protective measures taken under section 27(2) with respect to those manual handling operations.

(2) A person responsible for a workplace who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 108)*

30. Duty of employer when allocating work tasks to employees

(1) When allocating work tasks relating to manual handling operations which may create safety and health risks, the employer of the employees concerned must assess the respective capabilities of the employees to perform those tasks without risks to the safety and health of the employees themselves and other persons.

(2) An employer must not require any of his employees to undertake any manual handling operations which may create safety and health risks unless the employer has assessed that the employee is capable of performing those manual handling operations.

(3) An employer who contravenes subsection (1) or (2) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 109)*

31. Employer to provide adequate training to employees

(1) An employer must provide his employees with such training as will be necessary for avoiding or minimizing the risks to the safety and health of those employees when they are undertaking manual handling operations which may create safety and health risks.

(2) Without limiting the effect of subsection (1), an employer who employs employees to undertake manual handling operations which may create safety and health risks must provide safety and health training to those employees—

(a) when those employees are first employed by the employer; or

(b) when those employees are exposed to new or changed risks to their safety and health as a result of—

(i) their being allocated new work tasks relating to manual handling operations which may create safety and health risks to perform; or

(ii) the use of a new kind of plant which has not been introduced into the employees' workplace before, or the replacement of existing plant installed or kept in the employees' workplace by a new type of plant which has not been introduced into the workplace before; or

(iii) the introduction of new technology, a new system of work or new work practices at the employees' workplace; or

(iv) a change in existing technology, the existing system of work or existing work practices at the employees' workplace.

(3) An employer must ensure that the training which he is required to provide under subsection (1)—

(a) is repeated whenever necessary having regard to the purposes of the Ordinance; and

(b) is modified to take into account new or changed risks to the safety and health of his employees; and

(c) is provided during the employees' ordinary working hours.

(4) An employer who fails to comply with subsection (1), (2) or (3) commits an offence and is liable on conviction to a fine at level 6. *(5 of 2023 s. 110)*

32. Employees at work to take care of others and to co-operate with employer

(1) An employee must, when undertaking manual handling operations which may create safety and health risks—

(a) use any mechanical aid or protective equipment, and conform to any system of work and any work practices at the employee's workplace, that the employee's employer has provided or established in order to comply with the requirements imposed by or under this Part; and

(b) take reasonable care for the safety and health of other persons who are at the employee's workplace and who may be affected by the employee's acts or omissions when undertaking those manual handling operations.

(2) An employee who fails to comply with subsection (1) commits an offence and is liable on conviction to a fine at level 5.

Schedule 1

[s. 2]

Dangerous Parts of Plant

1. Revolving shafts, couplings, spindles, mandrels, bars and flywheels

2. In-running nips between pairs of rotating parts

3. In-running nips of the belt and pulley type

4. Projections on revolving parts

5. Discontinuous rotating parts

6. Revolving beaters, spiked cylinders and revolving drums

7. Revolving mixer arms in casings fitted with openings

8. Revolving worms and spirals in casings fitted with openings

9. Revolving high-speed cages in casings fitted with openings

10. Revolving cutting tools

11. Reciprocating cutting tools

12. Reciprocating press tools and dies

13. Reciprocating needles

14. Closing nips between platen motions

15. Projecting belt fasteners and fast running belts

16. Nips between connecting rods or links, and rotating wheel cranks or discs

17. Traps arising from the traversing carriages of self-acting machines

(E.R. 6 of 2024)

Schedule 2

[ss. 17, 18 & 19]

Items Contained in First Aid Facility

Part I

Workplaces at which the Number of Employees Employed is Less Than 10

1. A copy of the leaflet, issued by the Commissioner, giving advice on first aid treatment

2. At least 1 small sterilized unmedicated dressing for injured fingers

3. At least 1 medium-sized sterilized unmedicated dressing for injured hands or feet

4. At least 3 adhesive wound dressings of assorted sizes

5. At least 1 triangular bandages of unbleached calico, the longest side of the bandage measures not less than 1.3 m and each of the other sides not less than 900 mm

6. At least 1 roll of adhesive plaster (zinc oxide), approximately 25 mm wide and at least 2 m long

7. At least 1 packet of absorbent cotton wool of 30 g

8. A pressure bandage

9. Safety pins

(E.R. 6 of 2024)

Part II

Workplaces at which the Number of Employees Employed is 10 or More but Less Than 50

1. A copy of the leaflet, issued by the Commissioner, giving advice on first aid treatment

2. At least 6 small sterilized unmedicated dressings for injured fingers

3. At least 3 medium-sized sterilized unmedicated dressings for injured hands or feet

4. At least 12 adhesive wound dressings of assorted sizes

5. At least 2 triangular bandages of unbleached calico, the longest side of each bandage measures not less than 1.3 m and each of the other sides not less than 900 mm

6. At least 1 roll of adhesive plaster (zinc oxide), approximately 25 mm wide and at least 4.5 m long

7. At least 3 packets of absorbent cotton wool each of 30 g

8. A pressure bandage

9. Safety pins

(E.R. 6 of 2024)

Part III

Workplaces at which the Number of Employees Employed is 50 or More

1. A copy of the leaflet, issued by the Commissioner, giving advice on first aid treatment

2. At least 12 small sterilized unmedicated dressings for injured fingers

3. At least 6 medium-sized sterilized unmedicated dressings for injured hands or feet

4. At least 24 adhesive wound dressings of assorted sizes

5. At least 4 triangular bandages of unbleached calico, the longest side of each bandage measures not less than 1.3 m and each of the other sides not less than 900 mm

6. At least 1 roll of adhesive plaster (zinc oxide), approximately 25 mm wide and at least 4.5 m long

7. At least 6 packets of absorbent cotton wool each of 30 g

8. A pressure bandage

9. Safety pins

(E.R. 6 of 2024)

Schedule 3

[s. 25(1)]

Matters and Questions to be Considered when Making Assessment of Risks of Undertaking Manual Handling Operations

Column 1 Matter	Column 2 Question
1. The tasks	Do they involve holding or manipulating loads at distance from the body's trunk? Do they involve unsatisfactory bodily movement or posture, especially— (a) twisting the body's trunk? (b) stooping? (c) reaching upwards? Do they involve excessive movement of loads, especially— (a) excessive lifting or lowering distances? (b) excessive carrying distances? Do they involve— (a) excessive pushing or pulling of loads? (b) risk of sudden movement of loads? (c) frequent or prolonged physical effort? (d) insufficient rest or recovery periods? (e) a rate of work imposed by a process?

Column 1 Matter	Column 2 Question
2. The loads	Are they— (a) heavy? (b) bulky or unwieldy? (c) difficult to grasp? (d) unstable, or with contents likely to shift? (e) sharp, hot or otherwise potentially damaging?
3. The working environment	Are there space constraints that prevent good posture? Are there uneven, slippery or unstable floors? Are there variations in level of floors or work surfaces? Are there extremes of temperature or humidity? Are there conditions causing ventilation problems or gusts of wind? Are the lighting conditions poor?
4. Individual capability	Does the operation— (a) require unusual strength or height, or other abnormal physical characteristics? (b) create a hazard to persons who are pregnant or have a health problem? (c) require special information or training for its safe performance?
5. Other matters	Is movement or posture hindered by personal protective equipment or by clothing?